

C-3A

District Schedule

1 INTENT AND OVERVIEW

1.1 Intent

The intent of this schedule is to provide for a wide range of goods and services, to maintain commercial activities, specialized services and some light manufacturing uses while preserving the character and general amenity of the area and its immediate surroundings, and to provide for dwelling uses compatible with commercial uses.

1.2 Overview

The table below provides an overview of outright and conditional approval uses in the C-3A district, categorized by the minimum site area required, where applicable. Applicable density, form and placement regulations in section 3 of this schedule are cross-referenced in the third column.

Minimum Site Area	Use	Density, Form and Placement Regulations
--	All uses in section 2.1 of this schedule	3.1

2 USE REGULATIONS

2.1 Outright and Conditional Approval Uses

All outright and conditional approval uses are subject to all other provisions of this by-law, including [Section 2](#), [Section 10](#) and [Section 11](#), and compliance with the regulations of this schedule including section 2.2.

The uses identified in the table below as outright approval uses are permitted in this district and will be issued a permit.

The uses identified in the table below as conditional approval uses may be approved in this district by the Director of Planning or Development Permit Board, with or without conditions, if the Director of Planning or Development Permit Board considers:

- (a) the intent of this schedule and all applicable Council policies and guidelines; and
- (b) the submission of any advisory group, property owner or tenant.

Uses are listed under their general land use category. Applicable use-specific regulations in section 2.2 of this schedule are cross-referenced in the third column. Cross-references to applicable use-specific regulations are provided for information purposes only and do not form part of this by-law.

Use	Approval	Use-Specific Regulations
Agricultural Uses		
Urban Farm - Class B	Conditional	
Cultural and Recreational Uses		
Arcade	Conditional	2.2.1
Artist Studio	Conditional	2.2.1
Arts and Culture Event	Outright	2.2.1
Billiard Hall	Conditional	2.2.1
Bingo Hall	Conditional	2.2.1
Bowling Alley	Outright	2.2.1
Casino - Class 1	Conditional	2.2.1
Club	Outright	2.2.1
Community Centre or Neighbourhood House	Outright	2.2.1
Fitness Centre	Outright	2.2.1
Hall	Outright	2.2.1
Library	Outright	2.2.1
Museum or Archives	Outright	2.2.1
Park or Playground	Conditional	
Rink	Outright	2.2.1
Swimming Pool	Outright	2.2.1
Theatre	Outright	2.2.1
Zoo or Botanical Garden	Conditional	2.2.1
Dwelling Uses		
Mixed-Use Residential Building	Conditional	2.2.2, 2.2.3, 2.2.4
Multiple Conversion Dwelling, resulting from the conversion of a building existing prior to June 18, 1956	Conditional	2.2.5
Multiple Dwelling	Conditional	2.2.6
Principal Dwelling Unit with Lock-Off Unit	Conditional	2.2.7
Residential Unit associated with and forming an integral part of an Artist Studio	Conditional	

Use	Approval	Use-Specific Regulations
Seniors Supportive or Independent Living Housing	Conditional	
Institutional Uses		
Ambulance Station	Conditional	2.2.1
Child Day Care Facility	Conditional	2.2.1
Church	Conditional	2.2.1
Community Care or Assisted Living Facility - Class B	Conditional	2.2.1
Detoxification Centre	Conditional	2.2.1
Group Residence	Conditional	2.2.1
Hospital	Conditional	2.2.1
Public Authority Use	Conditional	2.2.1
School - Elementary or Secondary	Conditional	2.2.1
School - University or College	Outright	2.2.1
Social Service Centre	Conditional	2.2.1
Manufacturing Uses		
Clothing Manufacturing	Conditional	2.2.1
Dairy Products Manufacturing	Conditional	2.2.1
Food or Beverage Products Manufacturing - Class B	Conditional	2.2.1
Ice Manufacturing	Conditional	2.2.1
Jewellery Manufacturing	Conditional	2.2.1
Miscellaneous Products Manufacturing - Class B	Conditional	2.2.1
Printing or Publishing	Conditional	2.2.1
Textiles or Knit Goods Manufacturing	Conditional	2.2.1
Office Uses		
Financial Institution	Outright	2.2.1
General Office	Outright	2.2.1
Health Care Office	Outright	2.2.1
Health Enhancement Centre	Conditional	2.2.1
Parking Uses		
Parking Uses	Conditional	
Retail Uses		
Cannabis Store	Conditional	2.2.1
Farmers' Market	Conditional	2.2.8
Furniture or Appliance Store	Outright	2.2.1

Use	Approval	Use-Specific Regulations
Gasoline Station - Full Serve	Conditional	
Gasoline Station - Split Island	Conditional	
Grocery or Drug Store, except for Small-Scale Pharmacy	Outright	2.2.1
Grocery Store with Liquor Store	Conditional	2.2.1
Liquor Store	Conditional	2.2.1
Pawnshop	Conditional	2.2.1
Public Bike Share	Conditional	
Retail Store	Outright	2.2.1
Secondhand Store	Conditional	2.2.1
Shared E-Scooter System	Conditional	
Small-Scale Pharmacy	Conditional	2.2.1
Vehicle Dealer	Conditional	
Service Uses		
Animal Clinic or Shelter	Conditional	2.2.1
Animal Services	Conditional	2.2.1
Auction Hall	Outright	2.2.1
Barber Shop or Beauty Salon	Outright	2.2.1
Beauty and Wellness Centre	Outright	2.2.1
Bed and Breakfast Accommodation	Conditional	2.2.1
Cabaret	Conditional	2.2.1
Catering Establishment	Outright	2.2.1
Drive-Through Service	Conditional	
Funeral Home	Conditional	2.2.1
Hotel	Conditional	2.2.1
Laboratory	Outright	2.2.1
Laundromat or Dry Cleaning Establishment	Outright	2.2.1
Motor Vehicle Repair Shop	Conditional	2.2.1
Motor Vehicle Wash	Conditional	2.2.1
Neighbourhood Public House	Conditional	
Photofinishing or Photography Laboratory	Conditional	2.2.1
Photofinishing or Photography Studio	Outright	2.2.1
Production or Rehearsal Studio	Conditional	2.2.1
Print Shop	Outright	2.2.1
Repair Shop - Class A	Conditional	2.2.1

Use	Approval	Use-Specific Regulations
Repair Shop - Class B	Outright	2.2.1
Restaurant - Class 1	Outright	
Restaurant - Class 2	Conditional	2.2.1
Restaurant - Drive-In	Conditional	
School - Arts or Self-Improvement	Conditional	2.2.1
School - Business	Outright	2.2.1
School - Vocational or Trade	Outright	2.2.1
Short Term Rental Accommodation	Conditional	2.2.1
Sign Painting Shop	Outright	2.2.1
Wedding Chapel	Conditional	2.2.1
Transportation and Storage Uses		
Mini-Storage Warehouse	Conditional	2.2.1
Storage Warehouse	Conditional	2.2.1
Taxicab or Limousine Station	Conditional	
Utility and Communication Uses		
Public Utility	Conditional	2.2.1
Radiocommunication Station	Conditional	2.2.1
Recycling Depot	Conditional	2.2.1
Wholesale Uses		
Lumber and Building Materials Establishment	Conditional	
Wholesaling - Class A	Conditional	2.2.1
Wholesaling - Class B	Conditional	2.2.1
uncategorized		
Accessory Buildings, customarily ancillary to any use listed in this section 2.1	Outright	2.2.1 , 2.2.9
Accessory Uses, customarily ancillary to any outright approval use listed in this section 2.1	Outright	2.2.1 , 2.2.10
Accessory Uses, customarily ancillary to any use listed in this section 2.1	Conditional	2.2.1 , 2.2.11
Any other use that is not specifically listed and defined as a use in Section 2 of this by-law	Conditional	2.2.1 , 2.2.12
Deposition or extraction of material, which alters the configuration of the land	Conditional	

2.2 Use-Specific Regulations

2.2.1 All commercial uses listed in section 2.1 of this schedule and all outright approval accessory uses listed in section 2.1 of this schedule, must be carried on wholly within a completely enclosed building, other than the following:

- (a) arts and culture event;
- (b) display of flowers, plants, fruits and vegetables;
- (c) drive-through service;
- (d) farmers' market;
- (e) gasoline station - full serve;
- (f) gasoline station - split island;
- (g) hydrotherapy, thermal therapy, or both;
- (h) lumber and buildings material establishment;
- (i) neighbourhood public house;
- (j) outdoor eating area in combination with a cabaret, club, grocery or drug store, restaurant - class 2, or retail store, subject to any conditions that the Director of Planning considers necessary, having regard to the area and location of the eating area with respect to adjoining sites, the hours of operation and the intent of this schedule;
- (k) parking and loading facilities;
- (l) public bike share;
- (m) restaurant - class 1;
- (n) restaurant - drive-in;
- (o) shared e-scooter system;
- (p) taxicab or limousine station;
- (q) urban farm - class B; and
- (r) vehicle dealer,

except that the Director of Planning may vary this regulation to permit the outdoor display of retail goods, and the Director of Planning may impose any conditions that the Director of Planning considers necessary, having regard to the types of merchandise, the area and location of the display with respect to adjoining sites, the hours of operation and the intent of this schedule.

2.2.2 Any non-dwelling uses listed in section 2.1 of this schedule are permitted in a mixed-use residential building.

2.2.3 Mixed-use residential building may be permitted if the Director of Planning considers the design and liveability of the dwelling units.

- 2.2.4 No portion of the first storey of a mixed-use residential building, to a depth of 10.7 m from the front wall of the building and extending across its full width, may be used for dwelling uses except for entrances to the residential portion.
- 2.2.5 Multiple conversion dwelling, resulting from the conversion of a building existing prior to June 18, 1956, may be permitted if:
- (a) the Director of Planning considers:
 - (i) the quality and liveability of the resulting units,
 - (ii) the suitability of the building for conversion in terms of age and size, and
 - (iii) the impact of the conversion on adjacent properties and the character of the area; and
 - (b) there are no additions to the building.
- 2.2.6 Multiple dwelling may be permitted if the Director of Planning considers the site suitable for dwelling uses.
- 2.2.7 Principal dwelling unit with lock-off unit is permitted only in a mixed-use residential building or multiple dwelling.
- 2.2.8 Farmers' market may be permitted if the Director of Planning considers the appropriateness of the use with respect to compatibility with nearby sites, parking, traffic, noise, hours of operation, size of facility and pedestrian amenity.
- 2.2.9 Accessory buildings customarily ancillary to any use listed in section 2.1 of this schedule are permitted as an outright approval use if:
- (a) no accessory building exceeds 3.7 m in height measured to:
 - (i) the highest point of a flat roof,
 - (ii) the deck line of a mansard roof, or
 - (iii) the mean height between the eaves and the ridge of a gable, hip or gambrel roof,
 provided that no portion of an accessory building exceeds 4.6 m in building height;
 - (b) all accessory buildings are located:
 - (i) in the rear yard, and
 - (ii) at least 3.1 m from the ultimate centre line of any rear or flanking lane; and
 - (c) the total floor area of all accessory buildings, measured to the extreme outer limits of the building, does not exceed 15% of the total site area,
- except that the Director of Planning may vary the maximum height, the location regulations, and the floor area regulations to a maximum total floor area not exceeding 33.3% of the gross floor area of the principal use.

- 2.2.10 Accessory uses customarily ancillary to any outright approval use listed in section 2.1 of this schedule are permitted provided that the total floor area of all accessory uses does not exceed 25% of the gross floor area of the principal use, unless permitted as an outright approval use pursuant to section 2.1 of this schedule or the accessory use is a home-based business, except that the Director of Planning may vary the floor area regulations to a total floor area not exceeding 33.3% of the gross floor area of the principal use.
- 2.2.11 Accessory uses customarily ancillary to any conditional approval use listed in section 2.1 of this schedule must comply with the provisions in section 2.2.10 above.
- 2.2.12 Any other use that is not specifically listed and defined as a use in Section 2 of this by-law may be permitted if the Director of Planning considers the use to be comparable in nature to the uses listed in this schedule, having regard to the intent of this schedule.

3 DENSITY, FORM AND PLACEMENT REGULATIONS

This section contains density, form and placement regulations organized by use.

3.1 All Uses

All uses in this district are subject to the following regulations.

3.1.1 Density and Floor Area

3.1.1.1 The maximum floor space ratio is 1.00, except that:

- (a) the Director of Planning or Development Permit Board may increase the permitted floor space ratio to a maximum of 3.00, if the Director of Planning or Development Permit Board considers:
 - (i) the relationship of the development with nearby residential areas,
 - (ii) the height, bulk, location and overall design of the building and its impact on the site, surrounding buildings and streets, and existing views,
 - (iii) the amount of open space, including plazas, and the impact of the overall design on the general amenity of the area,
 - (iv) the impact of the development on traffic in the area,
 - (v) the provision for pedestrian needs,
 - (vi) the design and liveability of any dwelling uses, and
 - (vii) the intent of this schedule and all applicable Council policies and guidelines;
- (b) despite section [3.1.1.1\(a\)](#) above, if there is no heritage density available for transfer, the Director of Planning or Development Permit Board may permit an additional increase in the permitted floor area of 1 m² per amenity share provided to the City at no cost to the City, to a maximum of 10% of the permitted floor space ratio, if the Director of Planning or Development Permit Board considers the intent of this schedule, all applicable Council policies and guidelines, and the submission of any advisory group, property owner or tenant; and
- (c) the Development Permit Board may increase the permitted floor space ratio by a maximum of 10% where the increase results from a transfer of heritage density, except that this section [3.1.1.1\(c\)](#) does not apply to a development where there has been an increase in floor space ratio pursuant to section [3.1.1.1\(b\)](#) above.

3.1.1.2 Despite section [3.1.1.1\(b\)](#) above, the maximum floor space ratio achievable as a result of the provision of amenity shares must otherwise comply in all respects with this schedule and this by-law.

3.1.1.3 For the purposes of this section [3.1.1](#), “heritage density” means density provided as compensation for a heritage designation, which is transferred from the site of the designated heritage property to another site in accordance with [Heritage Incentive Program Policies and Procedures](#).

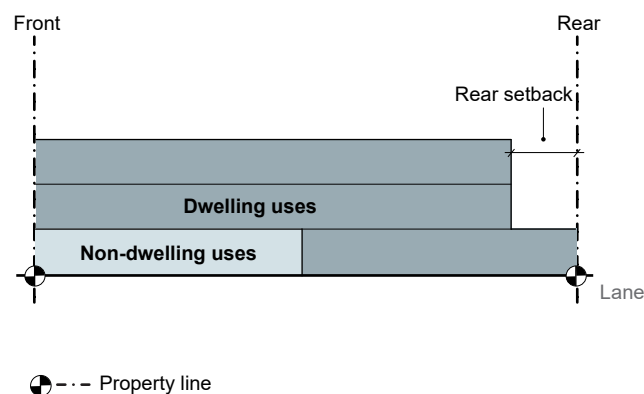
3.1.2 Building Form and Placement

Regulations	C-3A
3.1.2.1 Maximum building height	9.2 m
3.1.2.2 Front yard	not required
3.1.2.3 Minimum side yard width for a side yard that:	
(a) adjoins a site located in any RM district, without the intervention of a lane	1.5 m
(b) adjoins a site located in any RA, R1 or RT district, without the intervention of a lane	0.9 m
(c) does not adjoin a site located in an R district	not required
3.1.2.4 Minimum rear yard depth	3.1 m
3.1.2.5 Minimum rear setback for portions of a building containing dwelling uses	7.6 m

Building Height

- 3.1.2.6 The Director of Planning or Development Permit Board may increase the maximum building height if the Director of Planning or Development Permit Board considers:
- the relationship of the development with nearby residential areas;
 - the height, bulk, location and overall design of the building and its impact on the site, surrounding buildings and streets, and existing views;
 - the amount of open space, including plazas, and the impact of the overall design on the general amenity of the area;
 - the provision for pedestrian needs;
 - the preservation of the character and general amenity desired for the area; and
 - the intent of this schedule, all applicable Council policies and guidelines, and the submission of any advisory group, property owner or tenant.

Diagram: Rear yard and rear setback



Front Yard

- 3.1.2.7 For any parking area, a setback of 1.2 m from the front property line is required.

Side Yard and Side Setback

- 3.1.2.8 Despite the minimum side yard width in section 3.1.2.3(c) above, where a side yard is provided, although not required, the minimum side yard width is 0.9 m.
- 3.1.2.9 For any parking area on a corner site, a side setback of 1.2 m from the side property line abutting the flanking street is required.

Rear Yard and Rear Setback

- 3.1.2.10 Despite the minimum rear yard depth and rear setback in sections 3.1.2.4 and 3.1.2.5 above, where the rear of a site abuts a lane, the required minimum rear yard depth and rear setback will be decreased by the distance between the rear property line and the ultimate centre line of the lane.

4 GENERAL REGULATIONS

All uses in this district are subject to the following regulations.

4.1 Amenity Shares

- 4.1.1 For the purposes of this schedule, amenity means conservation of protected heritage property.
- 4.1.2 For the purposes of this schedule, the cost of an amenity share is the amount specified per m² in [Schedule G: Heritage Amenity Share Cost Schedule](#) of this by-law for the C-3A zoning district.

4.2 Computation of Floor Area

- 4.2.1 Computation of floor area must include:
- (a) all floors of all buildings, including accessory buildings, both above and below ground level, measured to the extreme outer limits of the building; and
 - (b) in dwelling units and artist studios, where the distance from a floor to the floor above, or where there is no floor above, to the top of the roof rafters or deck, exceeds 3.7 m, an additional amount equal to the area of the floor below the excess height, except that the Director of Planning may exclude additional height in combination with:
 - (i) an undeveloped floor area beneath roof elements which are, in the opinion of the Director of Planning, solely for decorative purposes and to which the only means of access is a hatch, residential lobby or mechanical penthouse, or
 - (ii) venting skylights, opening clerestory windows or other similar features which, in the opinion of the Director of Planning, reduce energy consumption or improve natural light and ventilation.
- 4.2.2 Computation of floor area must exclude:
- (a) balconies and decks, and any other appurtenances that the Director of Planning considers similar to the foregoing, provided that the total area of these exclusions does not exceed 8% of the permitted floor area;
 - (b) patios and roof decks, if the Director of Planning considers the impact on privacy and overlook;
 - (c) where floors are used for off-street parking and loading, the taking on or discharging of passengers, bicycle storage, heating and mechanical equipment, or uses that the Director of Planning considers similar to the foregoing, those floors or portions thereof, which are located:
 - (i) at or below the base surface, provided that the maximum exclusion for a parking space does not exceed 7.3 m in length, or
 - (ii) above the base surface, and where developed as off-street parking, are located in an accessory building situated in the rear yard, provided that the maximum exclusion for a parking space does not exceed 7.3 m in length;

- (d) amenity areas for the social and recreational enjoyment of residents and employees, or providing a service to the public, including facilities for general fitness, general recreation and child day care, if:
 - (i) the total excluded floor area does not exceed the lesser of 20% of the permitted floor area or 1,000 m², and
 - (ii) in the case of child day care facilities the Director of Planning is satisfied that there is a need for a child day care facility in the immediate neighbourhood; and
- (e) all residential storage area above or below base surface, except that if the residential storage area above base surface exceeds 3.7 m² per dwelling unit, there will be no exclusion for any of the residential storage area above base surface for that unit.

4.2.3 The Director of Planning may permit the following to be excluded from the computation of floor area:

- (a) enclosed residential balconies, if the Director of Planning considers the intent of this schedule and all applicable Council policies and guidelines and approves the design of any balcony enclosure, except that:
 - (i) the total area of all open and enclosed balcony or deck exclusions may not exceed 8% of the permitted residential floor area, and
 - (ii) no more than 50% of the excluded balcony floor area may be enclosed; and
- (b) interior public space, including atria and other similar spaces, if:
 - (i) the excluded area does not exceed the lesser of 10% of the permitted floor area or 600 m²,
 - (ii) the excluded area is secured by covenant and right-of-way in favour of the City of Vancouver which set out public access and use, and
 - (iii) the Director of Planning considers the intent of this schedule and all applicable Council policies and guidelines.

4.3 Access to Natural Light

4.3.1 Each habitable room must have at least 1 window on an exterior wall of a building.

4.3.2 For the purposes of section 4.3.1 above, habitable room means any room except a bathroom or kitchen.

5 RELAXATIONS

5.1 Where a need for any public, social, cultural or recreational facility has been demonstrated to the satisfaction of the Development Permit Board, the Board may relax the maximum floor space ratio for any 1 building that includes 1 or more of such facilities, and may require that any such facility be preserved in the public domain by way of a registered agreement and operated by the City or its delegates.

5.2 In determining the increase in floor area that may be permitted under section 5.1 above, the Development Permit Board must consider:

- (a) the construction cost of the facility;
- (b) any costs to the developer of continuing maintenance required for the facility;
- (c) the rental value of the increased floor area;
- (d) the value of any authorized relaxation of other restrictions; and
- (e) the opinion of City Council.